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The Interdependence of Civic Education and Democracy

An issue paper on state civic education policy, the A.C. v. Raimondo litigation, and how Indiana's voucher expansion affects civic curriculum accountability.

DOCUMENT	**Issue paper**
AUTHOR	**Ciana Sorrentino Wallace, MPA**
COURSE	**Law and Public Affairs (graduate)**
INSTITUTION	**O'Neill School of Public and Environmental Affairs, Indiana University**
ORIGINAL DATE	**April 2021**

ACADEMIC WORK NOTICE

This paper was originally prepared as graduate coursework at Indiana University's O'Neill School of Public and Environmental Affairs and has been reformatted for portfolio presentation.

The analysis, argument and sourcing are the author's original work. Legislative details reflect the 2021 Indiana session as of April 2021. Prepared for portfolio and professional evaluation purposes.

Introduction

> *"Democracy is not simply a license to indulge individual whims and proclivities. It is also holding oneself accountable to some reasonable degree for the conditions of peace and chaos that impact the lives of those who inhabit one's beloved extended community." — Aberjhani*

American democracy is in peril, and its citizens' ability to benefit from living in a country with robust freedoms, rights and a moral center protected by the rule of law is something they must constantly work for. An increasingly globalized world introduces concepts such as global citizenship, human rights and inclusion into the political conversations of every generation. In this era, trust in democratic institutions is waning while populism and the rejection of international institutions take hold; these deconsolidating democracies move toward less democratic forms of rule, supported by large numbers of their citizens through the legal exercise of democracy (Abrego, 2019). What does this mean for the preservation of a democratic system in the United States?

Education can be a double-edged sword for democracy, simultaneously promoting and stratifying the active engagement of students in the civic and political life of their communities. Studies show that by late adolescence, students have formed ideas about society based on accumulated experiences in their families, peer groups, schools and neighborhoods (Porter, 2013). Within the educational setting, the distribution of civic resources may create an inequitable context for disadvantaged populations in their pursuit of political efficacy. Political efficacy, or citizens' trust in their ability to influence political affairs, is essential to long-term democratic participation (Ballard et al., 2015). Because ideas about society are heavily influenced by political efficacy, civic education is considered a valuable asset for democracy (Ballard, 2016).

Civic education policy provides the educational impetus for addressing the lack of political efficacy. While every state has policy addressing civic education in some way, laws vary in the degree of mandated civic learning goals in public education. More than half of the states require some form of civic education assessment, yet a majority do not include civics, social studies or citizenship in their education accountability systems. In total, 19 states include civic education in their accountability systems, and 20 states provide curriculum frameworks to support instruction in civics and government (Baumann & Brennan, 2017).

Legal recognition of the importance of civic education plays an important role in the development of citizens' political efficacy. Constitutional recognition of a right to civic education, as well as state-mandated civic education programs, may also promote enduring democratic participation. By analyzing information from the Education Commission of the States on state statutes and laws that address civics, civic education or social studies, the effectiveness of these policies can be evaluated.

Current state of civic education policy

> *"Education is not preparation for life; education is life itself." — John Dewey*

Civic education receives relatively less attention than other school subjects despite recognition of its importance. Since 1998, the National Assessment of Educational Progress (NAEP) civics assessment has consistently shown that about 25% of eighth-grade students score proficient or above. Further exposing this gap, college seniors performed at a D- or F-level on a test of basic civic knowledge administered by the American Council of Trustees and Alumni. These measures suggest that American schools are inadequately preparing students for modern civic engagement (Baumann & Brennan, 2017).

Individual identity and participation in bureaucratic systems as an exercise of political efficacy are shaped by lived circumstances (Merritt et al., 2020). Because of the difference between the education system's representation of societal ideals of equality and the reality of inequality that disadvantaged populations experience, current civic education policy may not effectively address the intersectional challenges facing students in public schools. In this context, civic education provides a greater sense of political efficacy to advantaged populations, while disadvantaged populations are not equitably served (Levinson, 2012). This civic empowerment gap means that students in many public school communities have fewer opportunities to develop the skills for full participation in democratic life (Baumann & Brennan, 2017).

Current education policy is slow to adopt the recommendations of research, which contributes to variation across states in how civic education is delivered. To better understand the nuances in policy, the Education Commission of the States published a 2016 companion report assessing each state's approach, because states vary considerably in the policy tools they use to address civic education. Some states provide more support for curriculum development; California, for example, supports educators with one of the most robust civics curricula, while North Dakota and Minnesota rely on third-party organizations to provide teacher resources (Railey & Brennan, 2016).

In support of mandated civic education through public schools

Legal and policy considerations

Legal recognition of the importance of civic education plays an important role in how citizens develop political efficacy; consequently, constitutional recognition of a right to civic education and state-mandated civic education programs can promote enduring public participation. Public participation encompasses the many processes by which people's concerns, needs, interests and values are incorporated into decision-making about public issues, and it is necessary to uphold democratic values such as transparency, accountability and accessibility. As a fundamental principle of democracy, accountability holds that government officials are answerable to the citizenry for their decisions and actions (Khademian & Sharif, 2015). Public service accountability can be promoted by adhering to legal as well as ethical principles, but consistent ethical action requires the combined support of the public, practitioners and politicians (Williams, 2015).

A constitutional right to civic education: A.C. v. Raimondo (2020)

What happens when the youngest Americans feel that the government is not serving them effectively? A youth-centered movement at the intersection of law and social change is forming. In 2018, more than a dozen Rhode Island public school students filed a lawsuit in federal district court, decided in 2020, claiming that the state violated their Fourteenth Amendment rights by failing to provide an education that adequately prepares them for civic engagement. The plaintiffs, represented by minor A.C. and her parent, challenged defendants led by Rhode Island Governor Gina Raimondo.

A.C. v. Raimondo raises important arguments on both sides. The plaintiffs first cite How Democracies Die by Harvard professors Steven Levitsky and Daniel Ziblatt, which describes how democratic regimes across the world have fallen to authoritarian rule and highlights indicators of authoritarian behavior, including denial of the legitimacy of political opponents, toleration or encouragement of violence, and readiness to curtail the civil liberties of opponents, including the media.

The plaintiffs assert that the judiciary relies entirely on the public's respect for democratic institutions and the rule of law, and that a thorough understanding of the institutions and practices of the democratic order contributes to the survival of those institutions; without it, no form of democracy can protect itself from degenerating into populist rule or being captured by a hidden oligarchy. They then claim that the Equal Protection Clause of the Fourteenth Amendment requires states to provide students with a meaningful opportunity to obtain the basic education necessary to prepare them to be capable voters and jurors and to exercise their citizenship (U.S. Const. amend. XIV).

The defendants have the authority to set education policy and priorities and could make civic education a priority if directed by a federal court. The plaintiffs' argument resembles earlier claims that funding public education through local property taxes violates the Equal Protection Clause, which the Supreme Court has rejected multiple times. The Equal Protection Clause was expressly intended to control state action, but its opacity is evident in how differently it can be interpreted in court (Walsh & Hemmens, 2019). The court acknowledged that Rhode Island has a legitimate interest in maintaining local control of its education system.

The court ruled that the plaintiffs could not show the defendants' actions were arbitrary or irrational, but stated that they should be commended for bringing the case. District Judge William E. Smith wrote that the case "highlights a deep flaw in our national education priorities and policies," further calling attention to the cause, before dismissing it and describing the case itself as a civics lesson (A.C. v. Raimondo, 2020).

The decision reflects the careful, selective incorporation of the Bill of Rights: only fundamental rights, those without which neither liberty nor justice would exist, are incorporated, while nonfundamental interests such as equal access to schooling are left as state concerns (Walsh & Hemmens, 2019).

In support of civic curriculum autonomy

Legal and policy considerations

Voucher programs, or choice scholarships, have been instituted in many states and are awarded to eligible public school students who want to transfer to private institutions. They promise to improve consumer choice while still providing the public funding families need to invest in education. School choice policy takes many forms, such as eliminating neighborhood residency as a condition for attending a public school and allowing interest groups to form their own charter schools (Carnoy, 1997). Students who receive vouchers typically receive up to 90% of tuition from the state's education savings program.

Privatized education implies the deregulation of educational organizations, expanding the private sector and reducing the public sector. Supporters argue that privatization creates competitive efficiency, reduces the financial burden on government and meets rapidly growing demand for schooling. Because some populations want more autonomy, they promote private education to decentralize educational institutions and meet the needs of smaller localities by encouraging innovation in teaching and evaluation (Bholane, 2014). Across the 14 states and the District of Columbia that have enacted school choice voucher programs, statutes grant private schools considerable autonomy in designing their curricula (Merritt et al., 2018).

One study suggests that "the primary negative effect of school choice is its natural tendency to increase the educational gap between the privileged and the underprivileged." To counter this, the Netherlands supplies vouchers to disadvantaged pupils to make lower-income students more attractive to private schools; despite these efforts, public school students remain mainly low-income and still cannot attend the more desirable schools (Carnoy, 1997).

Is private education more effective at civic education, given its curricular autonomy? Without a system of curriculum accountability, it is hard to say. One way to provide oversight would be for states to require civic education as a condition of participation in the voucher program, with compliance demonstrated through yearly records documenting class participation (Merritt et al., 2018). Still, evidence suggests that privatizing education through universal vouchers may distribute educational quality and choice more unequally than a public system, widening divides between urban and rural students and between lower- and higher-income students (Carnoy, 1997).

Indiana's voucher system: HB 1005 and SB 412

Indiana is at the forefront of recent education policy on vouchers as the state with the largest voucher system. Article 8 of the Indiana Constitution requires the state "to provide, by law, for a general and uniform system of Common Schools, wherein tuition shall be without charge, and equally open to all"; however, critics argue the state has abdicated this responsibility through its relationship with the American Legislative Exchange Council (ALEC), which generates model legislation introducing market forces into education through vouchers, charters and tax credits (Shaffer et al., 2018).

A public administrator's determination of eligibility for government programs or public benefits requires a concrete understanding of both personal and professional liability (Newbold, 2015). Indiana House Bill 1005, authored by Representative Robert Behning, would create an education savings account program and extend voucher eligibility to families with household incomes up to about $145,000, roughly twice Indiana's median income. Since its introduction,

the provision extending eligibility to higher household incomes has been removed (Indiana House Bill 1005, 2021).

Similarly, Indiana Senate Bill 412 establishes the Indiana education scholarship account program. The program would deduct from Indiana adjusted gross income an amount distributed to an education scholarship account, funds originally used for public education. The new Personalized Education Grants would then be distributed from the account to eligible families, effectively directing public tax dollars to private education choices (Indiana Senate Bill 412, 2021).

Conclusion and recommendations

The argument remains that if dissatisfied parents are better served by efforts to improve public schools than by an exit strategy, society should focus on improving public education. The voucher system reflects how societies feel politically about the state's legal responsibility to educate its citizens. Many states are acting as though the public sector cannot adequately provide education and are offering vouchers to selectively eligible students, even though vouchers are unlikely to improve the average level of learning (Carnoy, 1997).

State civic education policies show that while all 50 states and the District of Columbia have civics requirements for high school graduation, those requirements range from minimal to specific. Seventeen states with social studies or civics assessment requirements use the results for reporting purposes to show accountability in standards and curriculum, and 20 states provide curriculum frameworks to support civics and government instruction (Baumann & Brennan, 2017).

The lack of civic education has been challenged in federal court by public school students, highlighting the need for a more robust approach to civics education despite the court's dismissal of the case. Policy options to strengthen civic education accountability include:

- Using assessment flexibility to adopt more innovative options for measuring civic learning.
- Making measures of civic learning part of education accountability systems.
- Recognizing the role citizenship education plays in social and emotional development.
- Reporting on factors beyond standardized academic test results (Baumann & Brennan, 2017).

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